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Case Number: 25SMCV06208 Hearing Date: July 22, 2026 Dept: M

CASE NAME: Siddiqui v. Molayem, et al.

CASE NO.: 25SMCV06208

MOTION: Demurrer to the Complaint

HEARING DATE: 7/22/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants George Molayem and Adeliya Gibadullina demur to Plaintiff Ruby Siddiqui’s complaint.

Request for Judicial Notice

Defendants’ request for judicial notice is GRANTED. (Evid. Code § 452(c), (d).)

UTVA

Transfer

Defendants

challenge the UTV cause of action on the grounds that there is no predicate transfer.

Generally, a “fraudulent conveyance is a

transfer by the debtor of property to a third person undertaken with the intent to prevent a creditor from reaching that interest to satisfy its claim.” (Kirkeby v. Superior Court of Orange County (2004) 33 Cal.4th 642, 648.) To plead a fraudulent transfer claim, a plaintiff must establish: 1) Transfer made or obligation incurred by a debtor; 2) with actual intent to hinder, delay, or defraud any creditor of debtor; 3) without receiving a reasonably equivalent value in exchange for the transfer or obligation: a) debtor was engaged or was about to engage in a business or a transaction for which remaining assets were unreasonably small in relation to the business or transaction; or b) intended to incur, or believed or reasonably should have believed that debtor would incur, debts beyond ability to pay as they became due; and 4) injury to the creditor. (Civil Code §§3439.04(a), 3439.05; Kirkeby, supra, (2004) 33 Cal.4th 642, 651 [fraudulent transfer sufficiently alleged based on defendant’s transfer of property with the intent to defraud, hinder or delay creditors in collection]; Annod Corp. v. Hamilton & Samuels (2002) 100 Cal.App.4th 1286, 1298 [proof of fraudulent intent in conveyances often is

inferences from the surrounding circumstances].)

The Complaint alleges that on May 16, 2019, while Plaintiff's underlying action against Molayem was pending, Molayem transferred title to the real property located at 2124 South Atlantic Boulevard, Commerce, California 90040, to his wife, Gibadullina, by grant deed recorded in the Official Records of Los Angeles County as Instrument No. 20190463855. (Compl., ¶ 7, Ex. A.) At the time of the transfer, Molayem was the owner of the Property and a defendant in Plaintiff's pending lawsuit, in which Plaintiff sought substantial monetary relief for Molayem's fraudulent conduct. (Id., ¶ 8.) The interspousal fraudulent transfer was made without adequate consideration as Gibadullina paid no fair market value for the Property. (Id., ¶ 9.) Following the transfer, Molayem continued to control and benefit from his de facto ownership

of
the Property. (Id., ¶ 10.)

Defendants

argue that the judicially noticeable record establishes that Molayem did not transfer title to the subject property to Gibadullina as alleged. Defendants contend that Exhibit A to the Complaint shows an Interspousal Transfer Grant Deed, which is "not a change of ownership." (Compl., Ex A.) They further contend that Gibadullina paid valuable consideration to the original owner, Jeff Weisfeld, that Weisfeld acknowledged receipt of consideration, and Gibadullina paid the full transfer tax for the property.

The

record does not affirmatively establish that Molayem never owned the subject property and never transferred title to Gibadullina as alleged. RJN Exhibit 1 establishes that on April 30, 2019, a third party granted Gibadullina, as her sole and separate property, the subject real property. However, this recorded instrument does not establish all facts necessary to conclude that Molayem never acquired any interest in the property between April 30, 2019, and May 16, 2019. To prevail on this argument, Defendants would have to rely on extrinsic evidence, including evidence that Molayem never acquired the subject property (despite the transfer shown in Exhibit A). Of course, this argument would logically lead to the question of why Molayem would grant his interest in the subject property to his wife if he never had interest in the property in the first place.

Further,

as noted above, Exhibit A to the Complaint shows an interspousal transfer grant deed where Molayem, as spouse of grantee, granted to Gibadullina, as her sole and separate property, the subject real property. Per the text of the exhibit, an interspousal grant deed is not a change in ownership under § 63 of the Revenue and Taxation Code. Under Tax. & Rev. Code section 60-63, a “change in ownership” means a transfer of a present interest in real property, including the beneficial use thereof, the value of which is substantially equal to the value of the fee interest, but excludes interspousal grants under certain circumstances, including the transfer solely between spouses of any co-owner’s interest. A transfer of real property which results in a “change in ownership” has certain tax implications, e.g., reassessment/reevaluation of a property. (Cal. Const., Art. XIII A.) While this was not a “change in ownership” for tax purposes, Defendants cite no authority that an interspousal grant deed could not be considered a transfer of property under the UTVA.

Accordingly,

the demurrer on these grounds is OVERRULED.

Abatement

Defendants

assert that another action is pending. A plea in abatement may be made by demurrer when there is another action pending between the same parties on the same cause of action. (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 789.) The later-filed suit is “abated” (stayed) pending resolution of the earlier action which, if concluded on the merits will be res judicata and if not, the later action will proceed. (*Ibid.*) The court can take judicial notice of the court files in determining the basis for this ground. (*Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-192.) “In order to sustain the plea of another action pending it is essential that it shall appear: (1) That both suits are predicated upon the same cause of action; (2) that both suits are pending in the same jurisdiction; and (3) that both suits are contested by the same parties. [Citation.] Where the plea is sustained the order should be merely an abatement or continuance of the second action, and it is error to give judgment for the defendant on the merits.” (*Colvig v. RKO General, Inc.* (1965) 232 Cal.App.2d 56, 70-71.) Here, this UTVA action is not the same cause of action as those addressed in the underlying fraud action. Thus, the Court does not find

grounds for abatement.

CCP § 916

Defendant

fails to adequately address the applicability of CCP section 916 to an UTVA cause of action. At best, the demurrer on this basis would only support a stay of this action, rather than dismissal.

The

perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. (CCP § 916(a).) The purpose of the appeal stay is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 198.) The automatic stay prevents the trial court from rendering an appeal futile by altering the appealed judgment or order or by conducting other proceedings that may affect it. (*Ibid.*) In determining whether a proceeding is embraced in or affected by the appeal, the Court must consider the appeal and its possible outcomes in relation to the proceeding and its possible results. (*Ibid.*) “[W]hether a matter is ‘embraced’ in or ‘affected’ by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the ‘effectiveness’ of the appeal.” (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381.) “If so, the proceedings are stayed; if not, the proceedings are permitted.” (*Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938.)

Here,

the UTVA action is a proceeding “embraced therein or affected” by the stayed action, since it specifically seeks enforcement of the underlying judgment, and not some other claim(s). The effectiveness of the appeal would be affected if judgment is entered in the UTVA action and enforced against Defendants. Notably, reversal of the underlying judgment will eliminate the predicate claim for the UVTA action. (See *Cortez v. Vogt*, (1997) 52 Cal. App. 4th 917, 931 [where there is a reversal of the underlying judgment on which the plaintiff relies to bring his action as a creditor to set aside the fraudulent transfer, the creditor is no longer entitled to the latter remedy].)

Thus, this UTVA action would not be merely a collateral matter which could occur regardless of the appeal's outcome. (Varian, supra, 35 Cal.4th at 190.) Additionally, to the extent that the claim existing at the time of the transfer was for the potential fraud claim, that judgment has already been fully satisfied. Section 3439.07(a)(1) only allows avoidance of a transfer to the extent necessary to satisfy the creditor's claim.

Therefore,
the Court would OVERRULE the demurrer but stay this action until the underlying appeal is resolved.

The
Court sets a Status Conference re Stay for January 11, 2027, at 8:30 a.m.